THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, COURT-I, CHANDIGARH
(Exercising powers of Adjudicating Authority under the Insolvency and Bankruptcy Code, 2016)

COMP.APPL Nos. 48/2022, 121/2022, 158/2023, 115/2025 117/2025, 205/2025, 206/2025

AND

CP No. 8/Chd/Hry/2022

Petition under sections 241, 242 and 244 of the Companies Act, 2013

IN THE MATTER OF:

Tarsem K. Ruby
Regd. Address: H. No. 676, Sector - 8,
Panchkula, 134109, Haryana

....Petitioner

Vs.

OJAS Medical Services Pvt. Ltd.
Regd. Off: Near Shopping Complex Sector-21
Panchkula 134109 (Haryana)
And having place of business at: H-1, Sector-26,
Panchkula, Haryana - 134116

....Respondent No. 1

Dr. Harish Gupta
58, Sector-8, Panchkula
9814004353
E-Mail: drharishgupta@hotmail.com

....Respondent No. 2

Dr. Lokesh Garg
Santosh Hospital, Gobindpuri,
Yamuna Nagar, Haryana
9996105105
E-Mail: garglokesh2005@gmail.com

....Respondent No. 3

Mr. Suresh Singla
873, Sector-8, Panchkula
9814066855
E-Mail: orthocentre@gmail.com.

....Respondent No. 4

Mr. Neeraj Bhatia
15/221, Malviya Nagar,
New Delhi
9810317585
E-Mail: nbtrace1@yahoo.com

....Respondent No. 5

Mr. Vikas Gupta
10, Sector-8, Panchkula-134109,
Haryana.
E-Mail: vikas_gupta@app.co.id

....Respondent No. 6

Alchemist Hospital Limited
Near Shopping Complex,
Sector-21 Panchkula HR 134109
Dr. hospital@alchemisthospitals.com

....Respondent No. 7

Dr. Kanwar Deep Singh
159, Sector 9, Chandigarh 160006

....Respondent No. 8

Dr. Karan Deep Singh
159, Sector 9, Chandigarh 160009
karan@alchemist.co.in

....Respondent No. 9

Mr. Lal Chand Saravagi
Flat no. A4, Youth Welfare Society,
Sector 79, SAS Nagar, Mohali, Punjab 160071
saravagi2k3@gmail.com

....Respondent No. 10

Ms. Sophia Mishra
CFO of Alchemist Hospitals Limited
Near Shopping Complex, Sector-21
Panchkula HR 134109

...Respondent No. 11

HDFC Bank Limited
Branch Manager, Panchkula Branch
SCO 409, Sector 8, Panchkula
Haryana, 134109

....Respondent No. 12

Haryana Shehri Vikas Pradhikaran (HSVP)
Through Mr. Gagan deep Singh, HCS
EO, Panchkula
HSVP Building, Sector 6, Panchkula, Haryana, 134109
Email: eopklhsvp@gmail.com

...Respondent No. 13

Dr. Anurag Sharma
264, Sector 4, Panchkula 134109, Haryana

....Respondent No. 14

Order delivered on: 20.01.2026

Coram: HON'BLE MR. KHETRABASI BISWAL, MEMBER (JUDICIAL)
HON'BLE MR. SHISHIR AGARWAL, MEMBER (TECHNICAL)

Present:

For the Petitioner:	Mr. Karan Gandhi
For the Respondent No's 7 to 11:	Mrs. Munisha Gandhi, Senior Advocate Mr. Tarun S. Khaira, Advocate Ms. Manveen Narang, Advocate Mr. Harit Narang, Advocate
For the Respondent No's 1,2 and 4:	Mr. Surjeet Singh Bhadu, Advocate Ms. Sanya Thakur, Advocate Ms. Rubina Virmani, Advocate
For Respondent No's.3,5,6,12, 14:	Ex-parte vide order dated 16.03.2022

ORDER

1. The present Petition has been filed under sections 241, 242 and 244 of the Companies Act, 2013 (hereinafter referred to as the "Act").

2. **The facts of the case as stated in the Petition are as under:**

   i) The Petitioner is a Shareholder of Respondents No.1 i.e. M/s OJAS Medical Services Pvt. Ltd. (hereinafter referred to as 'OJAS/Respondents No.1') and holds 14,00,000 equity shares, which represent 13.33% of the issued and paid-up share capital. The Petitioner has been the Director of Respondents No.1, since its inception w.e.f 30.06.2015. True copies of the Shares Certificates issued in favour of the Petitioner in proof of his holding 14,00,000 equity shares in Respondents No.1 representing 13.33% of the issued and paid-up share capital are annexed with the petition as **Annexure - P1**.

   ii) **Particulars of Respondent No. 1**

   (a) Respondent No. 1 was incorporated on 30.06.2015 as a private limited company bearing CIN: U85110HR2015PTC078582. The registered office of Respondents No.1 was originally located at NAC, Manimajra, Chandigarh, it

was subsequently shifted to Sector 26, Panchkula, Haryana, effective 24.01.2019. The Certificate of Incorporation is on record as Annexure-P2.

(b) Respondents No.1 was promoted by the Petitioner alongwith the Respondent No. 2 to 6 and Dr. Anurag Sharma. Dr. Virender Sarwal became shareholder cum director of Respondents No.1 subsequently.

(c) The main objects of Respondent No. 1 company as per its Memorandum of Association, primarily include the establishment, management, and operation of hospitals, clinics, diagnostic centers, and nursing homes. Furthermore, the company is authorized to manufacture and trade in pharmaceuticals, surgical instruments, and medical equipment, as well as to provide consultancy services and enter into international collaborations for the delivery of medical aid and healthcare infrastructure.

(d) The Articles of Association (AoA) of Respondent No. 1 regulate its internal management, specifically governing the appointment of directors and the transfer of shares. Under Article I of the AOA, the Company is characterized by restrictive covenants typical of a private company, including limitations on share transfers and a prohibition on public subscriptions. Furthermore, Article II vests the Directors with the authority to allot or dispose of shares at their discretion. These regulations are binding upon the Company and its members, intended to preserve the entity's closely-held nature by preventing the entry of hostile parties or the unauthorized dilution of control. The AoA and the Balance Sheet as of 31.03.2020 are annexed with the petition as Annexure-P3 (Colly).

iii) **Particulars of the Respondent No. 2 To 6 (Group - A Respondents)**: Respondents No.1 was promoted by the Petitioner alongwith the Respondent No. 2 to 6 and Dr. Anurag Sharma. The Respondent No.2 - Dr. Harish Gupta, Respondent No.3 - Dr. Lokesh Garg, Respondent No.4 - Dr. Suresh Singla, Respondent No.5 - Mr. Neeraj Bhatia and Respondent No.6 Mr. Vikas Gupta, be collectively referred to as **Group - A Respondents**.

iv) **Particulars of The Respondent Nos. 7 to 11 (Group B - Respondents):**

(a) Respondent No.7 was incorporated on 09.11.1994 having CIN: U85110HR1994PLC033860. The Company's Master Data and list of shareholders, as retrieved from the Ministry of Corporate Affairs (MCA) portal, are annexed as Annexure-P4 (Colly) to the Petition. The shareholding of Respondent No. 7 is primarily split between M/s Sorus Agritech Private Limited and M/s Placid Estate Private Limited, which hold 39% (Rs. 6.2 Crore) each. Evidence on record (Annexures P-5 and P-6) indicates a clear nexus between these entities, as they share a common registered address and common shareholding through Mr. Vinay Kumar Mittal; additionally, Mr. K.D. Singh holds a 91% stake in Sorus Agritech and was a subscriber to the Memorandum of Placid Estate. Furthermore, M/s Alchemist Holdings Ltd. holds a 4.9% stake in Respondent No. 7, despite its NBFC registration having been cancelled by the RBI on 26.06.2014 (Annexure-P7). These inter-relationships suggest a concentrated management and control structure under a common umbrella.

(a) Respondent No. 8 is a businessman and the former Chairman of the Alchemist Group, which has diversified interests in healthcare, pharmaceuticals, and infrastructure. As per the Directorship details annexed

at Annexure-P8, Respondent No. 8 holds directorships in 31 companies, including M/s Alchemist Hospitals Ltd. (R-7), M/s Placid Estate Pvt. Ltd., and M/s Sorus Agritech Pvt. Ltd.

(c) The Respondent No. 9 is the son of Respondents No.8. Respondent No.8 stepped down from his position as Chairman of the Alchemist Group in 2012 but remained Chairman Emeritus of the Alchemist Group.

(d) Mr. Lal Chand Saravagi (Respondent No.10) and Ms. Sophia Misra (Respondent No.11), whose particulars are given above were/are the key managerial personnel of Respondents No.7. and privy to fraud, oppression and mis-management.

(e) Respondent Nos. 7 to 11 be collectively referred to as Group - B Respondents.

v) **Particulars of the Respondent No. 12 (Hdfc Bank Ltd).**: Respondents No.12 is the banker of Respondents No.1 and who has advanced Rs. 46.25 Crores to Respondents No.1 in the form of loan with negligible security and contravening the banking law and procedure, thereby privy to the oppression and mismanagement.

vi) **Particulars of the Proforma Respondent No. 13 (Haryana Shehri Vikas Pradhikaran) And Respondent No. 14 (Dr. Anurag Sharma):** Respondent No. 13 allotted land to Respondent No. 1 in Panchkula via allotment letter dated 10.02.2015 (Annexure-P9). The allotment was made at concessional rates subject to specific covenants, including the provision of free treatment to EWS category patients and a prohibition on the sale, sub-leasing, or use of the land

for personal gain. The Respondent No. 14 continues to serve as a shareholder and Director of Respondent No. 1.

vii) The Petitioner submitted that there are a series of allegations concerning the involvement of Respondents No.8 and Respondents No.9 in systemic financial irregularities and money laundering through the Alchemist Group. This history of alleged misconduct traces back to a 2009 Income Tax raid that reportedly uncovered ₹22 crores in unaccounted income. By 2013, the Group's operations came under intense regulatory scrutiny after Alchemist Infra Realty Ltd. was found to have collected approximately ₹1,000 crore from 1.5 million investors through unauthorized Collective Investment Schemes, leading to SEBI-mandated refund orders. Further criminal complications arose in 2018 when the Kolkata Police booked the Respondents and various group entities for cheating thousands of customers, alongside allegations involving the funding of the Narada sting operation. These events culminated in Mr. K.D. Singh's arrest by the Enforcement Directorate on January 13, 2021, in connection with a money laundering probe involving an estimated ₹1,916 crore mobilized through illegal Ponzi schemes, following the prior attachment of assets valued at ₹239 crores.

viii) It is alleged that a criminal conspiracy was hatched between Group A and Group B Respondents to launder ill-gotten wealth amassed by Mr. K.D. Singh and his associates. The Petitioner contends that the Respondents sought to integrate these illicit funds into the formal economy by projecting them as legitimate assets through the planned takeover of OJAS. This maneuver was purportedly designed to disguise the origin of the funds, thereby violating

various statutory provisions and regulatory frameworks governing money laundering and corporate acquisitions.

ix) **Violations of Memorandum And Articles Of Association W.R.T. Rules Regarding Transfer Of Shares:** The Petitioner contends that the Respondents, in a coordinated effort, bypassed the mandatory regulatory framework established by the Articles of Association (AoA) of OJAS and Section 2(68)(i) of the Companies Act, 2013. Specifically, it is alleged that a "secret deal" was struck to illegally transfer 54% of the shares to Group B Respondents, violating the restrictive transfer provisions under Article I Clause 3 and the land allotment terms of the HSVP. The Petitioner further submits that as the AoA mandates share offers to be processed through the Board and requires strict adherence to internal procedures for the valid transfer of shares, the Respondents' failure to follow these protocols renders the subsequent Board resolutions and share transfers legally invalid. Consequently, this unauthorized transaction is portrayed as an illicit takeover intended to divulge confidential financial and administrative control to external parties.

x) **Violations Of The Companies Act, 2013, Secretarial Standard Of Institute Of Company Secretaries Of India And Other Applicable Provisions Of Laws In Conducting Board And General Meetings:**

(a) The Petitioner alleges that during the tenure of Respondent No.2, Respondents Nos. 3 and 4, there was a systemic failure in exercising their fiduciary responsibilities toward Respondents No.1. Despite the Petitioner providing expert remedial suggestions via correspondence dated September 24, 2018, the management purportedly engaged in the

persistent mis-utilization of corporate funds. This alleged mismanagement is evidenced by recurring financial irregularities in the balance sheets for the financial years ending 2018, 2019, and 2020, all of which were formally flagged by the Petitioner through various emails. Consequently, these fiscal lapses led to a mounting debt burden and subsequent defaults on EMI payments to LICHFL, as acknowledged in the correspondence from Respondent No. 2 dated December 29, 2019.

(b) The Petitioner contends that when Respondents No.1 faced imminent collapse due to financial irregularities and imminent NPA status with LICHFL, he intervened with a "savior plan," personally funding two EMI payments to stabilize the company. Consequently, the Petitioner was appointed as CEO on January 27, 2020. As CEO, the Petitioner sought to instill transparency by proposing an inquiry by a retired High Court Judge into alleged embezzlements by the prior management and appointing an external auditor. The Petitioner alleges that these transparency measures prompted Group A and Group B Respondents to conspire in his illegal removal as CEO, subsequently using bouncers to bar his entry to the premises. Furthermore, it is submitted that during the 36th Board Meeting on June 6, 2020, it was unanimously agreed that any exit by shareholders must first offer shares to existing members. The Petitioner alleges that the final minutes of this meeting were suppressed to facilitate the clandestine transfer of shares to external parties in violation of this internal agreement and the company's AoA.

(c) The Petitioner further contends that following an offer made by Group A Respondents on June 25, 2020, to sell 7,100,000 equity shares at a premium valuation, he formally accepted the same on June 26, 2020. It is alleged that despite this valid acceptance, Group A Respondents seeking to avoid the transaction, unilaterally imposed stringent and frivolous conditions to reject the Petitioner's acceptance. Notably, Respondent No. 5 initially honored the offer by executing a formal agreement on July 9, 2020, and accepting a part-payment of ₹1,01,00,000 from the Petitioner. This position was further supported by Respondents No.14 who via correspondence dated July 20, 2020, confirmed the Petitioner's acceptance and cautioned the Board against creating third-party interests, noting that the shares should be sold exclusively to the Petitioner as an existing shareholder in the absence of any refusal by other members.

(d) The Petitioner asserts that after notifying financial institutions of the management's irregularities, he was subjected to retaliatory and illegal maneuvers by the Respondents. Specifically, it is alleged that Respondents No.8 used criminal intimidation to coerce Respondent No. 5 into rescinding a concluded contract with the Petitioner. Despite the Petitioner having already advanced a partial consideration of ₹1,01,00,000, the shares of Respondent No.5 were forcibly transferred to Alchemist Hospital during the 40th Board Meeting on November 18, 2020, in gross violation of the subsisting agreement and the company's AoA. The Petitioner further maintains that his valid acceptance of the

June,2020 share offer created a binding contract, the deliberations of which were suppressed by the Respondents and the Company Secretary through the deliberate non-circulation of the final minutes for the 36th and 37th Board Meetings. This systematic concealment of records is cited as evidence of a mala fide conspiracy to facilitate an unauthorized third-party takeover while bypassing the Petitioner's pre-emptive rights as an existing shareholder.

(e) The Petitioner further contends that the Group-A Respondents, in execution of a calculated conspiracy, held the 38th Board Meeting on August 24, 2020, to facilitate the illegal transfer of a 54% controlling stake to Respondents No.7. This transaction and the subsequent appointment of Respondents No. 9 and 10 as directors allegedly occurred despite strenuous dissent from the Petitioner and other directors, including Dr. Anurag Sharma and Dr. Virender Sarwal, the latter of whom initially characterized the transaction as a "dubious and unauthorized deal." The Petitioner submits that these actions constitute a gross violation of the Companies Act, the HSVP land allotment terms, and the AoA specifically the restrictive transfer provisions under Article I and the Board's fiduciary control over share capital under Article II. Furthermore, the Petitioner asserts that this change in capital structure was executed without the mandatory consent of secured creditors, such as LICHFL and Karnataka Bank, thereby breaching established loan covenants and project norms.

(f) The Petitioner also alleges that as a reward for facilitating the laundering of proceeds of crime and projecting illicit funds as legitimate assets, Respondent No. 2 was appointed as a Director of Respondents No.7 on October 13, 2020, and subsequently he was also approved as a Whole-time Director of Respondents No.1 on January 1, 2021. It is further contended that the funds utilized for the share acquisition remain undisclosed, while significant sums were purportedly siphoned from the bank accounts of Respondents No.1 through fictitious transactions and converted into cash for the personal benefit of Group-A Respondents. These alleged irregularities and the unauthorized change in management led to regulatory repercussions, including a Show Cause Notice from the HSVP on October 7, 2020, for land allotment violations, and a legal notice from LICHFL on October 12, 2020, regarding breaches of loan sanction terms.

(g) The Petitioner alleges that the Respondents continued their coordinated efforts to seize control of Respondents No.1 through a series of contested meetings. During the 39th and 40th Board Meetings, held in late 2020, the Respondents confirmed the minutes of previous controversial meetings despite formal dissents from the Petitioner and Dr. Anurag Sharma. It is further contended that the Respondents authorized a "Rights Issue" of shares not for the benefit of the company, but as a tactical move to dilute the Petitioner's shareholding and strengthen the Alchemist Group's grip on the entity.

(h) The Petitioner also challenges the 41st Board Meeting and the 5th Annual General Meeting (AGM) as illegal, citing the "bogus recording" of minutes by the Company Secretary and the suppression of records from the 36th and 37th meetings. Collectively, these actions including the forceful shifting of the Registered Office to Respondents No.7 are portrayed as a mala fide scheme to sideline the Petitioner. Having exhausted all internal remedies and fearing for the safety of both his personal investment and public funds (loans), the Petitioner has approached this Court for relief.

xi) **Hdfc Bank In Collusion With Respondent No. 2 To 12 Advanced A Sum Of Rs. 46.25 Crores Of Public Money To Ojas In The Form Of Loan With Negligible Security And Gross Contravention Of Laws:** The Petitioner alleges a serious instance of financial fraud and forgery involving a loan of ₹46.25 crore sanctioned byRespondents No.12. According to the Petitioner, the Respondents submitted a fabricated Board Resolution dated December 21, 2020, to the bank, falsely claiming it was approved as Agenda Item No. 9 during the 41st Board Meeting. It is contended that the actual minutes of that meeting as circulated by the Company Secretary contain no such approval for a loan, mortgage, or the creation of a charge. The Petitioner further asserts that Respondents No.12 acted in collusion with the Respondents by issuing a sanction letter on December 19, 2020, even before the purported meeting took place. This allegedly fraudulent resolution was used to execute a Deed of Hypothecation on December 22, 2020, without valid corporate authorization. These actions, combined with a notice from the HSVP rejecting a mortgage

application due to the potential resumption of land, are cited as evidence of a coordinated effort to defraud the Petitioner and public financial institutions. The Petitioner further also raises serious allegations of financial impropriety against Respondents No.12, asserting that the bank sanctioned and disbursed a loan of ₹46.25 crores in total disregard of banking norms and RBI guidelines. It is contended that Respondents No.12 failed to conduct necessary due diligence, neglecting the fact that prior charges held by LICHFL and Karnataka Bank remained active and unsatisfied. The Petitioner submits that the loan was hurried through without obtaining mandatory mortgage permission from HSVP, despite a pending show-cause notice for the resumption of land due to unauthorized share transfers. Furthermore, the Petitioner and Respondents No.14 as founder-directors, maintain they were never informed of the loan application nor did they execute any personal guarantees or corporate documents. By failing to verify the authenticity of board resolutions against public MCA records, the bank is alleged to have colluded with the Respondents to create an illegal charge on the company's assets, thereby jeopardizing the interests of existing creditors and shareholders.

xii) **Respondent No. 2 To 12 In Collusion With Each Other Breached The Land Allotment Terms Of Haryana Shehri Vikas Pradhikaran (Hsvp):** The Petitioner alleges that Respondents No.2 acting as the authorized signatory for HSVP matters, acted in blatant disregard of the statutory terms and conditions governing the land allotment toRespondents No.1. It is submitted that the allotment letter, dated February 10, 2015, and the subsequent Deed of Conveyance strictly prohibited the transfer of ownership, change of land use,

or the creation of any third-party interest including mortgages or sales without the express prior written permission of the Estate Officer. The Petitioner contends that the Respondents breached these covenants by orchestrating a clandestine transfer of over 51% of the company's shares to the Alchemist Group. Despite these clear violations, which prompted a Show Cause Notice from the HSVP on October 7, 2020, the Petitioner maintains that the Respondents continued to act in collusion to bypass regulatory oversight, thereby jeopardizing the company's primary asset.

xiii) **Respondent No. 2 To 12 in Collusion With Each Other Breached The Terms of Loan Advanced By Lic Housing Finance Limited And Karnataka Bank:** The Petitioner contends that LIC Housing Finance Limited had advanced Loan of Rs.38,68,00,000/- vide Loan Agreement dated 18.03.2016 with Respondents No.1 subject to the agreed terms and conditions, Loan agreement dated 18.03.2016 between OJAS Medical Services Pvt. Ltd. with LIC HFL is annexed herewith as Annexure-P38 and Karnataka Bank Ltd. had also advanced over draft facility of Rs.4,25,00,000/- to Respondents No.1 vide Credit Sanction letter dated 08.11.2019 subject to the agreed terms and conditions, Credit sanction intimation dated 08.11.2019 of Karnataka Bank in favour of Respondents No.1 is annexed with the Petition as Annexure-P39. Respondents No.12 has sanctioned the aforesaid limits without the knowledge and consent of LICHFL and Karnataka Bank. Karnataka Bank has not vacated their charge on the securities, as the term loan availed is still outstanding with them. Respondent No.12 has violated the RBI Guidelines regarding corporate loan take over Process. Emails and letter dated 02.07.2020 and 06.07.2020 of

the Petitioner to the Karnataka Bank and LICHFL are annexed herewith as Annexure-P40. Show Cause Notice dated 12.10.2020 of LICHFL for taking legal actions against violations of terms of sanction of Loan is annexed herewith as Annexure-P41. Email dated 18.11.2020 of the Petitioner to the Show Cause Notice of LICHFL is annexed with the Petition as Annexure-P42.

Fraudulent Valuation Of Equity Shares Of Ojas: The Group A Respondents, while making the offer on 25.06.2020 to the Petitioner for sale of their 71,00,000/- equity shares, allegedly valued the shares of Respondents No.1 on a very higher side i.e. @ Rs. 23.80 per share. Interestingly, no valuation report was annexed with the offer. Whereas, vide email dated 01.01.2021 from Respondent No.11, circulated a valuation report of Respondents No.1 analysing fair value of equity shares of Respondents No.1 as on 30.09.2020@ Rs. 10/- only. There was no justification as to why the value of the equity shares of OJAS was substantially reduced in the hands of Alchemist group from Rs. 23.80 to Rs. 10/- within a period of 3 months. This is the gross mismanagement in the affairs of Respondents No.1 and therefore, the public money lent by the bank is not in safe hands. Email dated 01.01.2021 from Ms. Sophia Mishra enclosing Valuation Report of Respondents No.1 analysing fair value of equity shares of Respondents No.1 as on 30.09.2020 and further communication is annexed with the Petition as Annexure - P43.

3. **The Respondents No. 1 and 2 has made the following Submissions:**

i. The Respondents No.1 and 2 challenges the maintainability of the Petition at the threshold, asserting that the Petitioner lacks the requisite *locus standi* under Section 244 of the Companies Act, 2013. It is submitted that for a

company with share capital, a petition under Section 241 is maintainable only if filed by at least 100 members, one-tenth of the total membership, or by member(s) holding at least 10% of the issued share capital. In the present case, the Petitioner holds only 9.04% of the shares in Respondents No.1 as of 10.02.2022. As the Petitioner fails to meet the mandatory numerical or shareholding thresholds prescribed by the legislature to prevent frivolous litigation, the Respondent contends No.1 and 2 the petition is an abuse of process and deserves dismissal for want of statutory eligibility.

ii. Furthermore, the Respondent No. 1 and 2 seek dismissal on the grounds of delay and laches, highlighting a lack of *bona fides* in the Petitioner's conduct. Although the petition was initially filed on 19.02.2021, it remained in the filing branch with defects for nearly a year, only being rectified and registered on 08.02.2022. The Respondent No.1 and 2 argues that this intentional delay in pursuing the matter contradicts the Petitioner's allegations of urgent "oppression and mismanagement." It is submitted that the Petitioner's failure to act with due diligence demonstrates that the litigation is not born of a genuine grievance but is an attempt to "arm-twist" the management and disrupt corporate democracy, thereby disentitling the Petitioner to any equitable relief from this Tribunal.

iii. The Respondent No.1 and 2 contends that the Petition is an abuse of the process of law, as the Petitioner has failed to establish any specific acts of oppression or mismanagement. It is submitted that the Petitioner has unnecessarily impleaded Respondent No. 8 to prejudice the proceedings and

has made reckless allegations regarding the Respondent No.12 loan. Respondent No.1 and 2 highlight a contradiction in the Petitioner's conduct stating that: the Petitioner accepted the benefits of the loan transfer from LICHFL to Respondent No.12 by withdrawing his personal guarantee during the transition, yet now seeks to challenge the validity of the same transaction. The Respondents No.1 and 2 maintain that the Petition is a retaliatory measure intended to harass the management and cover up the Petitioner's own misdeeds.

iv. In response to the Petitioner's stand in the regards to share capital, the Respondent No.1 and 2 submit that while the Petitioner held 13.33% of the share capital at the initial filing on 19.02.2021, his holding was reduced to 9.04% by the time the Petition was registered and heard in February 2022 (as per the shareholding pattern at **Annexure R-1/1**). The Respondent No.1 and 2 argue that since the Petitioner no longer meets the mandatory 10% threshold prescribed under Section 244 of the Companies Act, 2013, he lacks the requisite *locus standi* to maintain the action. They assert that this statutory requirement is a vital jurisdictional fact, and the failure to satisfy it at the time of the effective pursuit of the petition necessitates its dismissal at the threshold.

v. The Respondents No.1 and 2 categorically deny the allegations set out in Paragraph 4(a) and its sub-paragraphs of the contents of the Petition, asserting that they are entirely irrelevant to the adjudication of the present dispute. It is submitted that the Petitioner has failed to establish any specific acts of oppression or mismanagement and has instead cast baseless

aspersions on Respondent No.8 who is described as a party disparate to the transactions in question. The Respondents No.1 and 2 contend that these averments are intended solely to prejudice the proceedings and embarrass the management. Consequently, the Respondents No.1 and 2 maintain that no detailed reply is warranted at this stage, reserving their right to respond further should this Hon'ble Tribunal deem it necessary.

vi. The allegations in paragraphs 4(b), 4(c)(i) and 4(c)(ii) of the Petition are denied. The answering respondents have demonstrated that the share transfer and related transactions were conducted in compliance with the provisions of the Companies Act, 2013 and the memorandum and AoA of the Company. The Petitioner was involved in the process, including participation in board meetings, and has not shown any evidence of malice, secret dealings, or violation of the articles regarding transfer of shares. The restrictions on share transfer in a private company, including rights of pre-emption and board discretion as set out in Articles 19–22 of the AoA of Ojas Medical Services Pvt. Ltd., were duly followed. In the absence of any legitimate grievance, the Petition is liable to be dismissed.

vii. In reply to paras 4(d)(i) to 4(d)(v) of the Petition, the Respondents submit that Respondent Nos. 2 to 4 are experienced medical professionals who successfully obtained all statutory approvals, empanelments, and tax exemptions for the company. The business and accounts were managed transparently, and no fraud or irregularity was ever pointed out by the statutory auditors; the balance sheets were prepared in accordance with applicable accounting standards and statutory compliances. There were no

financial irregularities, and the accounts were accessible to all directors. Respondent No.2 was never appointed as CEO and had only been entrusted with additional administrative responsibilities. The Petitioner, without Board or shareholder approval, acted as a self-styled CEO, delayed statutory and EMI payments, drew salary without authorization, and took unilateral decisions, thereby causing financial loss to the company. Accordingly, the allegations made by the Petitioner are baseless and untenable.

viii. In reply to paras 4(d)(vi) to 4(d)(xiii) of the Petition, the Respondents submit that the Petitioner was never appointed as CEO, as the proposal in the 35th Board Meeting was never ratified nor approved by the shareholders as required under Section 203 of the Companies Act, 2013. The Board Meeting dated 06.06.2020 approved only the banking resolution, and the petitioner failed to comply with the same. The Respondents lawfully offered their shares to the Petitioner at ₹23.80 per share in accordance with the Act; however, the Petitioner gave no definite acceptance, failed to furnish financial credentials, and made an unacceptable and mala fide proposal involving OCDs without clarity on release of guarantees. Certain allegations pertain to other respondents and call for no reply. The Petitioner's conduct, including sending frivolous emails to financial institutions, was prejudicial to the interests of the Company and the Respondents.

ix. In reply to paras 4(d)(xv) to 4(d)(xviii) of the Petition, the Respondents deny all allegations as false and frivolous. The sale of shares was discussed in the 37th Board Meeting but no decision was taken, and the issue of CEO appointment remained inconclusive for want of shareholder approval.

Allegations against Respondent No.8 relate to a legitimate transaction to which Respondent No.5 has no grievance. The Board meetings were conducted strictly in accordance with the AoA, which binds the Petitioner, and resolutions were taken by majority as specified therein. The transfer of shares was in compliance with the Companies Act, 2013. The Petitioner, being a disgruntled shareholder, has indulged in repeated and identical complaints, which were already examined and closed by the Registrar of Companies, and is therefore not entitled to re-agitate the same issues before this forum.

x. In reply to paras 4(d)(xix) to 4(d)(xxiii) of the Petition, the Respondents deny the allegations as false, vague, and malicious. The transfer of shares was effected strictly in accordance with the Companies Act, 2013, duly approved in the 38th Board Meeting attended by the Petitioner, who himself sold his shares on 24.08.2020. The show-cause notices issued by Haryana Shehri Vikas Pradhikaran were duly replied to and subsequently withdrawn, as evidenced by permission to mortgage granted in favour of Respondent No.12. The right issue of shares and shifting of the registered office were carried out in compliance with statutory provisions, and the Petitioner was duly offered shares but failed to accept the same. The Board resolution, dated 21.12.2020 was validly passed after due notice, and the Petitioner's non-attendance does not vitiate the proceedings. The Petition is a forum-hunting exercise by a disgruntled shareholder and deserves dismissal.

xi. In reply to para 4(d)(xxiv) and paras 4(e)(i) to (viii) of the Petition, the Respondents deny the allegations as false and misleading. The Petitioner's

queries were duly addressed by the statutory auditor, and there was no risk to public funds. The Petitioner was fully aware of the earlier high-interest loans availed during his own tenure as Director, which burdened the company due to irregular repayments. Upon change of administration, urgent statutory dues and liabilities were cleared, and the Board lawfully resolved to restructure borrowings and infuse funds through equity. The takeover of loans by Respondent No.12 was undertaken pursuant to valid Board resolutions, subsequently ratified, resulting in substantial reduction of interest rates and clear financial benefit to the company. The Petitioner participated in and accepted these resolutions, benefited from release of personal guarantees, and has failed to show any loss or illegality. The Petition is therefore frivolous and an abuse of process.

xii. It is further submitted by the Respondents that the land was duly allotted by HSVP in 2015 and conveyed to the Company on 06.11.2016. Subsequent HSVP policies, dated 26.11.2020 and 24.09.2021 permitted transfer and mortgage of hospital plots. Pursuant thereto, permission to mortgage was granted on 04.02.2022. No illegality or violation is made out. The petitioner was aware of the loan transactions. Earlier loans were availed during his tenure at higher interest rates. Refinancing through Respondent No.12 was undertaken pursuant to Board resolutions, duly ratified, and resulted in substantial reduction of interest. The transaction was in the company's interest and caused no prejudice to the petitioner or the public. Allegations are meritless. Valuation is a matter of expert judgment and may vary with methodology. Certified valuers conducted the valuations using recognized

methods and applied them uniformly. No material is shown to establish fraud or manipulation.

xiii. The Respondents submitted that the Company Petition filed under Sections 241, 242 and 244 of the Companies Act, 2013 is not maintainable and deserves dismissal at the threshold. The Petitioner has failed to establish any prejudicial conduct in the affairs of the company or circumstances warranting relief on just and equitable grounds. No specific acts of oppression or mismanagement have been pleaded or proved, nor is there any material showing lack of probity or prejudice to the petitioner's legal or proprietary rights as a shareholder. The Petition is vague, unsupported by particulars, and amounts to an abuse of the process of law intended to disrupt corporate governance. Consequently, the Petitioner is not entitled to any relief, interim or otherwise.

4. Written submissions on behalf of Respondents No's 1,2 and 4 were filed dated 12.03.2025 and it was stated by learned senior counsel for respondent No's. 1, 2 & 4 that reply filed by Respondents No. 1 & 2 be also read as reply on behalf of respondent No. 4 as well.

5. Vide, Order, dated 16.03.2022, Respondent No's. 3, 5, 6, 12 and 14 were proceeded against ex parte.

6. The Respondent No. 7 to 9 and 11 have also filed their reply dated 11.05.2022 and reply to the amended Petition was filed 09.02.2025 and written submission on 19.03.2025. Their reply and written submission were on the same lines as the Reply and written submission filed by Respondents No. 1 and 2.

ANALYSIS AND FINDINGS

7. We have Heard the Ld. Counsels for all parties and considered the arguments presented by the parties, including their respective petitions, replies, and written submissions.

8. In order to decide the case at hand, we first need to refer to section 241 and 242 of companies Act, 2013 which provides that the sections can be invoked when the affairs of the company are being conducted in a manner that is oppressive to the members or prejudicial to the interests of the company or public interest.

9. This Tribunal, vide, Order, dated 22.05.2023 heard on the issue of maintainability which was raised by the Respondents. The Petitioner claims eligibility under Section 244 of the Companies Act, 2013 on the ground of holding more than 10% shareholding, though the plea regarding fulfillment of the criterion relating to the total number of members was not specifically pleaded in the main Petition. The Learned Counsel for the Petitioner fairly conceded the said omission and sought permission to amend the Petition to incorporate the requisite averment. In the interest of justice, the Petitioner was permitted to carry out the amendment within the stipulated time, with liberty to the Respondents to file their reply thereafter. The Petitioner has filed the amended petition and also filed the written submission on the maintainability of the petition. The Respondents have also filed the reply to the amended petition. Thus the petition is held as maintainable.

10. On the date of hearing, vide, Order, dated 28.11.225, Mr. Karan Gandhi, Ld. Counsel for the Petitioner was asked to advance arguments, which he began to do. During the course of his presentation, he was repeatedly requested to be brief and concise in his arguments. However, he continued to insist on reading the entire

pleadings. He was already granted more than one hour to address the arguments, he was still seeking substantially more time, which could not be allowed. He was accordingly directed to file a short note within three days, along with supporting judgments, covering the point of his arguments, which will be considered while deciding the matter. Ld. Counsels for the Respondents were also directed to file a short note covering their points of arguments along with supporting judgments within three days. Short notes of arguments were filed by the Respondent No' 7 to 11, however the Petitioner failed to file it.

11. After taking into consideration the pleadings of the Petitioner and the reply of the Respondents, the following issues can be framed:

(i) Whether the Respondents acted in conspiracy with each other in violation of Section 2(68)(i) of the Companies Act, 2013 read with Article I, Section 3(i) of the AoA of Respondent No.1, by entering into a secret arrangement to sell 54% of the shareholding of Respondent No.1 to Respondents No. 7 to 11?

(ii) Whether the issuance of the Show Cause Notice dated 07.10.2020 by Haryana Shehri Vikas Pradhikaran (HSVP) for alleged violation of the terms of allotment, read with Clauses 2 and 29 of the allotment letter dated 10.02.2015, establishes that the Respondent Company illegally created a mortgage and facilitated the takeover of its loan by HDFC Bank without prior permission of HSVP, thereby committing acts of oppression and mismanagement as alleged by the Petitioner?

(iii) Whether HDFC Bank Ltd. acted in grossest collusion with the Respondents and sanctioned the loan/ credit facility of Rs.46,25,00,000 (Forty Six Crores and Twenty Five Lacs) without any Board Resolution to that effect?

(iv) Whether the above acts of the respondents would amount to being prejudicial to public interest and would fall within the term of oppression and mismanagement?

12. In regard to issue No. (i) it can been seen that upon a perusal of the evidence, specifically Annexures P-14 to P-17, this Tribunal finds that the Respondents did indeed comply with the principles of Pre-emption by offering the shares to the Petitioner on 25.06.2020 at a price of Rs 23.80/- per share. However, the Petitioner's response dated 29.06.2020 cannot be termed as an 'acceptance' in the legal sense. By proposing the issuance of Optionally Convertible Debentures (OCDs) of the company itself as consideration, the Petitioner made a counter-offer. In law, a counter-offer constitutes a rejection of the original offer. Consequently, no concluded contract arose between the Petitioner and Respondents No. 2 to 6. Once the Petitioner failed to exercise the right of pre-emption through a valid acceptance, the Respondents were legally entitled to sell the said shares to third parties (Respondents 7 to 11). The allegation of a 'secret deal' or 'conspiracy' lacks merit as the Petitioner was given, and failed to utilize, the first right to buy.

13. In regard to issue No. (ii), the allegation that HSVP issued a Show Cause Notice dated 07.10.2020 to the Respondent Company does not, by itself, establish any illegality or violation. A show cause notice is merely a preliminary step and cannot be treated as a conclusive finding of wrongdoing. It is undisputed that the land was allotted to the Respondent Company vide allotment letter dated 10.02.2015, subject

to certain conditions. However, HSVP subsequently revised its policy governing institutional plots and, vide policy guidelines dated 26.11.2020 and Memo dated 24.09.2021, permitted transfer and mortgage of constructed hospital buildings. Pursuant to the revised policy, HSVP granted permission to mortgage the property in favour of the Respondent Company on 04.02.2022, thereby regularising the issue. No material has been placed on record by the Petitioner to show that such permission was obtained by fraud or misrepresentation. It is further evident that the transaction conferred no personal benefit upon the Respondents. On the contrary, the Petitioner himself benefited by release of his personal securities. In view thereof, no violation of HSVP allotment terms survives, and no case of oppression or mismanagement is made out on this ground.

14. In regard to issue No. (iii), this Tribunal finds that the challenge to the HDFC Bank loan facility lacks merit, as the transaction was fundamentally a debt-restructuring exercise that served the paramount interest of the Company by reducing the interest burden from 12.50%–12.80% to 7.75%. While the Petitioner alleges procedural lapses regarding the lack of a specific Board Resolution on the date of execution, such irregularities, if any, stand cured by the Doctrine of Ratification; the Board specifically confirmed the loan actions in its 42nd meeting on 27.04.2021, where the Petitioner was present and failed to record any contemporaneous dissent. Furthermore, the Petitioner is effectively estopped from challenging the loan's validity as he was a direct beneficiary of the transaction, which resulted in the release of his personal guarantees and collateral from previous lenders. Consequently, in the absence of any proven prejudice to the Company or

evidence of "gross collusion," the Court upholds the validity of the loan as a bona fide exercise of corporate commercial wisdom.

15. In regard to issue No.(iv), this Tribunal finds that the Petitioner has failed to establish the essential ingredients required to invoke the jurisdiction of the Tribunal in the case of oppression and mismanagement. The Petitioner neither during the course of his argument nor in his petition which lacks specific pleadings and proof of any prejudicial conduct in the affairs of the Company or circumstances warranting winding up on just and equitable grounds. On the contrary, the material on record reflects sound financial performance and regularisation of statutory and banking compliances by the Respondent Company. In view of the foregoing discussion and in the absence of any substantiated allegations, the Petition deserves dismissal.

16. In the result, **CP No. 8/Chd/Hry/2022** is hereby **dismissed and disposed of.**

17. Accordingly, the pending COMP. APPL No's. 48/2022, 121/2022, 158/2023, 115/2025, 117/2025, 205/2025, 206/2025 and any other connected applications, if pending, are rendered infructuous and stand disposed of. Interim orders in CA No. 121 of 2022, stands vacated.

Sd/-

(Shishir Agarwal)
Member (Technical)

Sd/-

(Khetrabasi Biswal)
Member (Judicial)

January 20, 2026
Sudesh